

**DNA IDENTIFICATION TESTING
LABCORP SERVICES AGREEMENT
THIRD PARTY ADMINISTRATOR**

This Agreement is between Laboratory Corporation of America Holdings (“LabCorp”) and Medical Testing Solutions (“Client”). This Agreement describes the terms and conditions whereby LabCorp will provide genetic parentage testing services for Client and Client will purchase such testing services.

1. **TERM**

This Agreement is effective as of the date signed by LabCorp and shall remain in effect until terminated by either party.

2. **TERMINATION**

This Agreement may be terminated by either party by notifying the other party in writing thirty (30) day before the termination date by providing notice at the addresses listed below.

3. **TESTING SERVICES**

LabCorp agrees to perform genetic parentage testing services as described in Exhibit 1 and, as applicable, Exhibit 2 (“Services”).

4. **RESPONSIBILITY AND ACCOUNTABILITY**

LabCorp agrees to comply with all requirements and guidelines described in Exhibits 1 and 2 of this Agreement.

Client agrees to comply with all requirements and guidelines listed in Exhibits 1 and 2 of this Agreement.

5. **FEES**

Client agrees to pay for all Services (except for the testing of residents of the State of New York), in the manner and in the amounts set forth in Exhibit 3.

6. **BILLING**

LabCorp will send to the Client a monthly itemized statement of Services performed for the prior month. Payment for Services is due thirty (30) days after the date of invoice. Failure to remit payment within thirty (30) days may result in discontinuation or interruption of services and any other remedies available to LabCorp under applicable law.

7. **CHANGE IN LAW OR REGULATION**

The terms of this Agreement are intended to be in compliance with all federal, state and local laws and regulations applicable on the date the Agreement takes effect. In the event that any portion of this Agreement is or may be in violation of any law, then the parties may agree to modify the Agreement as may be necessary to establish compliance with the law or regulation.

8. **NON-ASSIGNABILITY**

This Agreement may not be assigned by Client without the written consent of LabCorp.

9. **INDEPENDENT RELATIONSHIP**

Client and LabCorp are independent entities contracting with each other for the Services described in this Agreement. Neither of the parties may bind the other party as an agent, employer, representative, or otherwise, of the other party.

10. ENTIRE AGREEMENT

This Agreement including Exhibits 1, 2, and 3 describes the entire understanding of the parties concerning the Services described herein, and represents the entire Agreement. The terms and conditions may be modified in writing and signed by both parties.

ACCEPTANCE:

Client:

LabCorp:

By: _____

By: _____

Print Name: _____

Print Name: George C. Maha

Title: _____

Title: Associate Vice President

Date: _____

Date: _____

Address: 424 N. Pearl Street
Lebanon, IL 62254

Address: 1440 York Court
Burlington, NC 27215

EXHIBIT 1
REQUIREMENTS OF WORK TO BE PERFORMED
SAMPLES WITH CHAIN OF CUSTODY

LabCorp will provide genetic parentage testing services on properly collected samples containing a complete chain of custody submitted by Client.

The following requirements are based on the 10th Edition of Standards for Relationship Testing Laboratories and are to be followed correctly and completely. In order to maintain accreditation LabCorp must follow the most current edition of Standards for Relationship Testing and Client will be notified of any substantive change in accreditation standards by the LabCorp. In the event these Standards are not followed by Client, LabCorp may terminate this agreement.

RESPONSIBILITY AND ACCOUNTABILITY FOR COLLECTION:

LabCorp will assist Client with specimen collection services. LabCorp will provide on-line scheduling of specimen collection appointments at its company-operated Patient Service Centers and other collection sites nationwide.

LabCorp will provide all supplies required for specimen collection, party identification, specimen packaging and transportation of samples to LabCorp testing facility. The LabCorp will provide a Client authorization / chain of custody form. With approval of LabCorp, the Client may develop its own Client authorization / chain of custody form for use during collections.

Client is responsible for all specimen collection cost and accuracy of the collection for samples collected at a site not provided by LabCorp.

For persons who are New York residents, Client agrees not to send any samples to LabCorp unless there is a court order, physician's prescription, or other order from an authorized person as defined by New York laws and regulations. Client is also responsible for ensuring that for New York residents the request from the authorized person lists the person(s) to receive the results. Client understands that if the request from the authorized person does not list the Client, Client will not receive a copy of the report.

Client is responsible for following LabCorp's genetic parentage testing standard chain-of-custody procedures and subsequent updates. LabCorp's specimen collection requirements, including chain of custody procedures, materials, and updates will be provided by LabCorp staff.

Upon receipt the LabCorp will examine the samples and packaging for signs of tampering, contamination, an incomplete chain of custody, impaired specimen containers, and other information required by accreditation agencies.

- *If the collection requirements are not met, or an error is made in the collection process, it may be necessary to recollect the sample(s). In some cases an affidavit documenting the chain of custody will be sufficient.*
- *If the collection does not meet the accreditation standards and the specimens were collect at a site not provided by LabCorp, the Client is responsible for the cost of recollecting the specimens. If the specimens are collected at a site provided by LabCorp, LabCorp will be responsible for the cost of the recollection.*

RESPONSIBILITY AND ACCOUNTABILITY FOR TESTING:

LabCorp will provide genetic parentage testing using DNA methods that will provide in a standard test of a mother, child, and alleged father at least:

- 1) power to exclude more than 99.9% of randomly selected males; or
- 2) probability of paternity greater than 99.5% in all cases where the alleged father is not excluded from paternity.
- 3) provide results which reflect exclusions in at least three (3) test systems

In non-standard tests, such as mother not tested, reconstruction or family study cases, cases involving samples other than buccal swabs and blood, or post mortem samples, results may yield reports of a relationship, no relationships, and occasionally inconclusive results. For samples other than freshly collected blood or buccal swabs there may be no results.

LabCorp will provide a report of the testing and evaluation within five (5) business days of receipt of all samples in a given case. If LabCorp does not complete testing within this timeframe, it will not be considered a material breach of this Agreement.

- *Non-standard tests, such as, mother not tested, family study, and extended testing cases may require additional time.*

RESPONSIBILITY AND ACCOUNTABILITY FOR REPORTING OF THE TEST RESULTS:

LabCorp will, upon completion of testing, have a Director evaluate the test results and issue the final report. LabCorp will send via US First Class mail, or as mutually agreed upon, one original report of test results and evaluation and the original Client authorization/chain of custody form with photographs to the Client.

Client can issue the original report to its customer by:

- 1) forwarding the original results of the testing and evaluation submitted by LabCorp directly to its customer; or
- 2) transcribing the original results, submitted by LabCorp, onto its own company letterhead.

Routine questions about the testing, or the testing process are to be handled by the Client. The Client may contact LabCorp for clarification of questions regarding the testing and if necessary for investigation and resolution by LabCorp.

LabCorp will, at the request of Client and payment of expert witness fees, provide testimonial and witness services with respect to specimens tested under the Agreement. LabCorp should receive a two-week notice by the Client for scheduling an expert for court appearance.

RESPONSIBILITY AND ACCOUNTABILITY FOR INAPPROPRIATE MARKETING CLAIMS:

Client must not use the AABB logo on their Web page, or use any other tactic that might be misleading to their customers.

- *Client is not permitted to “borrow” the claim of accreditation from the fact that it forwards the samples to an accredited facility.*

RESPONSIBILITY AND ACCOUNTABILITY FOR USE OF LABCORP’S NAME AND ACCREDITATION STATUS:

Client is responsible for ensuring no inappropriate marketing claims are made on its behalf. Client will not make the claim that they are AABB accredited. Client may safely state that their samples are sent to an AABB accredited LabCorp. LabCorp’s name may not be used on Client’s website or marketing material without the expressed written permission from LabCorp.

EXHIBIT 2
REQUIREMENTS OF WORK TO BE PERFORMED
SAMPLES WITH NO CHAIN OF CUSTODY (if applicable)

LabCorp will provide genetic parentage testing services for samples with no **chain of custody (also known as non-legal tests)** submitted by Client.

Client is responsible for all specimen collection costs.

Samples that have no-chain of custody do not meet accreditation standards. The Client may not advertise that these non-chain of custody/non-legal tests are being evaluated following AABB standards and may not use AABB's logo or name on any marketing piece, document, communication, and page of a website that advertises non-chain of custody/non-legal testing.

LabCorp's name may not be used on Client's website or marketing material without the expressed written permission from LabCorp.

LabCorp will provide genetic parentage testing using DNA methods that will provide in a standard test of a mother, child, and alleged father at least:

- power to exclude more than 99.9% of randomly selected males; or
- probability of paternity greater than 99.5% in all cases where the alleged father is not excluded from paternity.
- provide results which reflect exclusions in at least three (3) test systems

Non-chain of custody/non-legal cases are not recommended for non-standard cases; in non-standard tests, such as mother not tested, reconstruction or family study cases, cases involving samples other than buccal swabs and blood, or post mortem samples, results may yield reports of a relationship, no relationships, and occasionally inconclusive results. For samples other than freshly collected blood or buccal swabs there may be no results.

LabCorp will provide a report of the testing and evaluation within five (5) business days of receipt of all samples in a standard paternity case. If LabCorp does not complete testing within this timeframe, it will not be considered a material breach of this Agreement.

- *Non-standard tests, such as, mother not tested, family study, and extended testing cases may require additional time.*

LabCorp will, upon completion of testing, have a Director evaluate the test results and issue the final report. Non-chain of custody/non-legal reports will not be signed nor will the name of the director be included. The final report will contain a disclaimer indicating that the testing was performed without chain of custody. LabCorp will send via US First Class mail, or as mutually agreed upon, one original report of test results and evaluation.

Client can issue the original report to its customer by:

- 1) transcribing the original results, submitted by LabCorp, onto its own company letterhead.

Routine questions about the testing, or the testing process are to be handled by the Client. The Client may contact LabCorp for clarification of questions regarding the testing and if necessary for investigation and resolution by LabCorp.

EXHIBIT 3
FEE SCHEDULE: CHAIN of CUSTODY/Legal

Test Name	Fee Schedule
Standard Testing	
Standard Paternity Trio	\$150.00 Case
DNA Profile	\$50.00 per person
Additional Party Charge	\$50.00 per person
Reuse Results Fee	
▪ 1 party fee	\$25.00 per person
▪ 2 party fee	\$50.00 per person
▪ 3 party fee	\$75.00 per person
Relationship Testing	
Grandparent Testing	\$70.00 per person
Siblingship Testing	\$70.00 per person
Avuncular Testing	\$70.00 per person
Family Reconstruction Testing	\$70.00 per person
Specialty Testing	
Y STR	\$150.00 add'l charge per person
Non-Standard Sample (Includes anything other than blood/ buccal)	\$150.00 per person charge
Twin Zygosity	\$80.00 add'l charge per person
DNA Profile & Storage (Price includes Test and Storage)	
▪ One (1) year	\$75.00
▪ Seven (7) years	\$100.00
▪ Fifteen (15) years	\$150.00
Rush Results/Testing	
▪ Next day for samples arriving M - TH	\$250.00
Expert Witness Testimony	\$1,500.00

Client agrees that for any person(s) who is a New York resident, that this person(s) will directly pay LabCorp in the amounts set forth above. The form of payment will be by certified check, money order, or credit card made payable to LabCorp. No cash will be accepted. The payment must be submitted with the samples or before the samples are collected.

If the LabCorp tests any samples in a proposed case, Client will be charged the agreed upon specimen fee regardless if the Client's clients complete the case. If all persons have not been collected within thirty (30) days, LabCorp may invoice Client for the work performed. Regardless, a report will not be issued until all persons are collected and tested.

PREPAID ACCOUNTS (if applicable):

Client must follow the requirements listed below to maintain a prepaid account with LabCorp:

Payment in full must accompany the sample(s)

- acceptable forms of payment are cashier's check or money order NO CASH; or
- credit card payment can be made when scheduling party(ies) for collection.

LabCorp will hold, and will not release, the results to the Client for cases under Client's prepaid account when payment is not received at the time samples are submitted to LabCorp for testing